

**JUDGMENT SHEET
IN THE LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT**

Crl. Rev. No.25867 of 2021
(Waris Ali. *versus* Bilal Ahmad, etc.)

Complainant by: Ch. Umar Hayat Kamran Rajoka, Advocate.

AALIA NEELUM, C.J.- Bilal Ahmad, son of Zahoor Ahmad, caste Rajpoot, resident of Chak No.230/G.B., Tehsil Samundari, District Faisalabad, the appellant, was involved in case F.I.R. No.95 of 2020, dated 13.01.2020, registered under Sections 302, 404 PPC, at Police Station, Madina Town, District Faisalabad and was tried by the learned Additional Sessions Judge, Faisalabad. The trial court seized with the matter in terms of the judgment dated 10.03.2021 and convicted the appellant under section 302(b) PPC and sentenced him to undergo **imprisonment for life (R.I) as Tazir** with the direction to pay Rs.3,00,000/- as compensation under section 544-A Cr.P.C. to the legal heirs of the deceased, Allah Yar, and in case of default in payment thereof, he would further undergo six months of S.I. The benefit of section 382-B Cr.P.C. was also extended in favour of the appellant.

2. Feeling aggrieved by the trial court's judgment, Bilal Ahmad, the appellant, has assailed his conviction by filing CrI. Appeal No. 25868-J

of 2021. It is pertinent to mention here that the complainant also filed Crl. Rev. No. 25867 of 2021 seeking enhancement of the sentence awarded to the appellant. A consolidated judgment is disposing of the matters arising from the same trial court judgment.

3. The prosecution story as alleged in the F.I.R (Ex. PC/1) lodged on the written complaint (Ex. PC) of Waris Ali (PW-6)-the complainant is that he was residing at Chak No.215/R.B Nathri and working as security guard on Darbar Baba Faryad Jaranwala Road, Faisalabad; Allah Yar, brother of the complainant (PW-6) aged about 45/46 years was married and working as security guard at Ali Garden Chak No.208/R.B; that on 13.01.2020, at about 02:00 a.m., complainant (PW-6) came to know that his brother Allah Yar had quarreled with Bilal Ahmad (security guard), whereupon, the complainant (PW-6), along with Muhammad Arshad (PW-7), Riasat Ali (PW-8), reached Ali Garden Chak No.208/R.B, where they settled the dispute between the accused Bilal Ahmad and Allah Yar. They were sitting at the gate of Ali Garden. Bilal Ahmad, who was also on duty at the said gate, was armed with an 8MM rifle; the bulbs were enlightening. At about 04:00 a.m., Bilal Ahmad (the appellant) while armed with rifle 8MM raised lalkara that he would teach a lesson about his insult and in their presence, accused Bilal Ahmad made straight eight fires with rifle 8MM upon his brother Allah Yar, which hit on the front chest, right shoulder and left arm; Allah Yar, the brother of the complainant (PW-6) succumbed to the injuries at the spot; they tried to apprehend the accused Bilal Ahmad, but he fled away and the accused also took licensed pistol No.300-C of Allah Yar with him.

The motive behind the occurrence is that some time ago, a quarrel took place between Bilal Ahmad (the appellant) and Allah Yar, the deceased, over the performance of the duty.

4. Upon receiving information of the occurrence, Shahzad Ahmad, S.I./S.H.O (PW-11), along with police officials, reached the place of the occurrence, where Waris Ali (PW-6), the complainant, produced a written

application (Ex.PC) before him (PW-11). After incorporating the police proceedings, he sent the same to the police station through Junaid 4342/C (PW-9). On receiving the complaint (Ex.PC), F.I.R. (Exh.PC/1) was chalked out by Abdul Hafeez 5467/HC (PW-4).

5. After the case was registered, Shahzad Ahmad, S.I./S.H.O (PW-11), initially investigated. Subsequently, the investigation was entrusted to Aman Ullah, S.I./S.H.O (PW-10), who, having found the appellant guilty, prepared a report under Section 173 of the Cr.P.C. and sent it to the court of competent jurisdiction. On 23.09.2020, the trial court formally charged the appellant, to which he pleaded not guilty and claimed trial. In support of its version, the prosecution produced eleven (11) witnesses.

6. After the closure of prosecution evidence, the appellant was examined under Section 342 of Cr.P.C., wherein neither did he opt to appear as his witness in terms of Section 340 (2) Cr.P.C., nor did he opt to produce evidence in his defence. In response to a particular question about why this case was against him and why the PWs had deposed against him, the appellant made the following depositions: -

“I am innocent. Actual story is, on that day i.e. 13.01.2020 some dacoit attacked on Ali Garden Gate when I was inside the colony. Deceased Allah Yar tried to stop them but they made straight firing on deceased Allah Yar due to which Allah Yar deceased died at the spot. Neither me not any PWs were present at the spot. After that police in connivance with complainant and PWs falsely involved me in this false occurrence as a scape goat. I am innocent.”

7. After recording the evidence and evaluating the evidence on record in light of the arguments advanced by both sides, the trial court found the prosecution’s version proved beyond any reasonable doubt, resulting in the appellant’s conviction in the aforementioned terms.

8. I have heard the arguments advanced by the learned counsel for the parties and have minutely perused the record on the file.

9. In the instant case, the occurrence took place on 13.01.2020 at 04:00 a.m., in the area of Chak No. 215/R.B falling within the territorial jurisdiction of P.S Madina Town, Faisalabad. The incident in the instant case was not reported at police station, rather, Shahzad Ahmad S.I/SHO (PW-11) on receiving information of the occurrence went to Ali Garden 208/R.B, where he met with Waris Ali (PW-6)-the complainant and received written complaint (Exh.PC) and incorporated the police proceedings at 05:15 a.m., at Ali Garden 208/R.B and referred the complaint to the police station for formal registration of FIR through Junaid 4342/C (PW-9). After that, Abdul Hafeez 5467/C (PW-4) chalked out a formal FIR (Exh.PC/1) at 05:30 a.m. Admittedly, the distance between the place of occurrence and the police station is 03 kilometers. Waris Ali (PW-6), the complainant, reported the incident with a delay of 01 hour and 15 minutes, at 05:15 a.m., when the police, upon receiving information about the incident, reached Ali Garden. Waris Ali (PW-6)-the complainant also admitted during cross-examination that the distance between the place of occurrence and our residence was about 03-kilometers. The complainant also admitted that he was unaware of the time at which he informed about the occurrence. However, stated that after one hour, the police reached the place of occurrence. Waris Ali (PW-6)-the complainant deposed during cross-examination that:-

“I do not remember time when I informed police about the occurrence.-----Police reached at the place of occurrence after one hour. The application (Exh.PC) was written by police official.”

Contrary to the deposition of Waris Ali (PW-6), the complainant, Muhammad Arshid (PW-7), the eyewitness and paternal cousin of the deceased, deposed that after 15/25 minutes of the occurrence, the police reached the place of occurrence. He (PW-7) deposed during cross-examination as under:-

“Police reached at the place of occurrence after 15/25 minutes. Waris Ali complainant himself

moved the application Exh.PC for registration of case to police at about 05:00 a.m.”

Muhammad Junaid 4342/C (PW-9) deposed during cross-examination that:-

“We reached at the place of occurrence at 05:15 a.m. I brought the application/complaint for registration of FIR at 05:30 A.M.”

Shahzad Ahmad S.I/S.H.O (PW-11) deposed during his examination-in-chief that:-

“On the same day, complainant Waris Ali handed over to me application Exh.PC for registration of FIR. I endorsed my police proceedings Exh.PC/2 on the said application and sent the same through Junaid 4342/C to police station for registration of FIR.”

During cross-examination, Shahzad Ahmad, S.I/S.H.O (PW-11), admitted that he received information about the incident at 04:10 a.m. and reached the place of occurrence within ten to fifteen minutes, where fifteen to twenty persons were present. None of the police officials was present at that time except him. Shahzad Ahmad, S.I/S.H.O (PW-11), investigating officer, also stated during cross-examination that the application for registration of the FIR was drafted at the complainant's (PW-6) dictation. Shahzad Ahmad, S.I/S.H.O (PW-11), investigating officer, also deposed during cross-examination that:

“Complainant was drafting application for registration of FIR when I was busy in other proceedings of the case at the place of occurrence.”

A partial investigation was conducted, and proceedings at the place of occurrence took place before the FIR (Exh. PC/1) was registered. These facts raise doubts about when the matter was reported to the police.

Even perusal of the inquest report (Exh.PF) reveals that on the face of the inquest report (Exh.PF), the FIR number was mentioned along with the date and the name of the police station. In column No.3 of the inquest report (Exh.PF) relating to the date and time of receiving information about death, it is mentioned as “13-01-2020 ع ١٥/٥”. The

inquest report (Exh.PF) suggests that it was prepared at 05:15 a.m., before the FIR was registered. Muhammad Junaid 4342/C (PW-9) deposed during cross-examination that he reached the police station after receiving the complaint (Exh.PC) for registration of FIR, at 05:30 a.m. The above-mentioned testimony of the prosecution witness casts doubt on the time at which the incident was actually reported to the police and on the proceedings that took place at the place of occurrence. It is an admitted fact that prosecution witnesses were chance witnesses. They were not supposed to be present at the place of occurrence when the incident occurred. Waris Ali (PW-6)-the complainant deposed during examination-in-chief that:-

“On 13.01.2020 at about 2:00 AM, I came to know that my brother Allah Yar has quarreled with Bilal Ahmad (Security Guard) present accused in custody. On this information, I alongwith Muhammad Arshid son of Jaffar, Riasat Ali son of Nawab reached at Ali Garden Chak No. 208/RB, where we settled the dispute between the accused Bilal Ahmed and my deceased brother.”

During cross-examination, Waris Ali (PW-6), the complainant, deposed as follows:

“Riasat Ali PW is my paternal cousin (Tayazad Bahi) and Arshid PW is also my paternal cousin (Chachazad Bahi). They are resident of Chak No.215/RB. They have cattles and earn their livelihood by selling Milk. I also used to go at my job on by-cycle. ----- I came to know about the occurrence through telephonic call of my deceased brother. After receiving call of my deceased brother about quarrel, I called PWs and then we went to the place of occurrence. I made telephonic call to Riasat Ali PW. PWs came to me on one motorcycle. The PWs reached on my place of job about ten to fifteen minutes.”

Muhammad Arshid (PW-7) did not receive a call from Waris Ali (PW-6), the complainant; rather, the complainant informed Riasat Ali (PW-8) about the quarrel. Waris Ali (PW-6) deposed that he informed Riasat Ali (PW-8) by cell phone about the quarrel between Allah Yar (deceased) and Bilal Ahmad (accused). After that, Riasat Ali (PW-8) and Muhammad

Arshid (PW-7) came to his place, from where they went to Ali Garden 208/RB. Muhammad Arshid (PW-7) deposed during his examination-in-chief that:-

“Stated that on 13.01.2020 at about 2:00 AM, Waris Ali came to know that deceased Allah Yar has quarreled with Bilal Ahmad (Security Guard) present accused in custody. On this information, Waris Ali called PW Riasat Ali and upon the call of Waris Ali, I alongwith Riasat Ali son of Nawab reached at Darbar of Baba Faryad Jaranwala road Faisalabad where Waris Ali already present.”

During cross-examination Muhammad Arshid (PW-7) deposed as under:-

“On the day of occurrence, Waris Ali PW made telephonic call to Riasat Ali PW at 2:00 AM (night). We were on Chak No. 215/RB at the time of occurrence. We reached at Ali Garden within 15/20 minutes. Witness again said, we reached to Waris complainant from Chak No. 215/RB in 15/20 minutes and then after about twenty minutes reached at Ali Garden.”

Riasat Ali (PW-8) deposed during his examination-in-chief that:-

“On this information, Waris Ali called me and upon the call of Waris Ali, I alongwith Muhammad Arshid PW reached at Darbar of Baba Faryad Jaranwala road Faisalabad where Waris Ali already present. We all reached at Ali Garden Chak No. 208/RB, where we settled the dispute between the accused Bilal Ahmed and deceased Allah Yar.”

The portion of the statement of Riasat Ali (PW-8) relating to the call made by Waris Ali (PW-6), the complainant, was confronted by the defence as under:-

“Deceased Allah Yar was performing duty at Ali Garden since last one an half month. I recorded in my statement u/s 161 Cr.P.C. that Waris Ali called me. Confronted with Ex.DB where word (اطلاع) is mentioned.

Riasat Ali (PW-8) also deposed during cross-examination that:-

“Waris Ali called me at about 2:00 AM. Arshid Ali PW was with me. My present address is

Chak No. 215/RB while my permanent address is Chak No. 275/RB Tehsil Jaranwala which was mentioned on my statement. It consumed one hour to reach at Ali Garden from my house Chak No. 215/RB.”

Shahzad Ahmad S.I/S.H.O (PW-11)-the investigating officer admitted during cross-examination that:-

“I did not take into possession mobile phone of the deceased from the place of occurrence. I also did not take into possession mobile phones of complainant and witnesses. I also did not obtain CDRs of the complainant, PWs and deceased.”

The prosecution tried to establish that Allah Yar, the deceased, contacted his brother, Waris Ali (PW-6), the complainant, and informed him about the quarrel that had taken place between him and Bilal Ahmad (accused). Similarly, after receiving the call from Waris Ali (PW-6), the complainant from his brother, he (PW-6) contacted Riasat Ali (PW-8). After that, Muhammad Arshid (PW-7) and Riasat Ali (PW-8) gathered at the place of Waris Ali (PW-6) and came to the place of occurrence.

It is the case of the prosecution that the prosecution witnesses Waris Ali (PW-6), Muhammad Arshid (PW-7), and Riasat Ali (PW-8) settled the dispute between the deceased Allah Yar and Bilal Ahmad (accused). After that, at about 04:00 a.m., Bilal Ahmad (accused), while armed with an 8mm rifle, raised lalkara, stating that he would teach a lesson about the insult, in their presence, as they were sitting at the gate of Ali Garden. Similarly, Waris Ali (PW-6), the complainant, mentioned in the written complaint (Exh.PC), which is reproduced hereunder:-

“اور ہم اپنے بھائی اللہ یار کے پاس علی گارڈن گیٹ پر بیٹھ گئے“

During cross-examination, Waris Ali (PW-6)-the complainant deposed that:-

“After compromise we were sitting inside the guard room including deceased. It is correct that in my application Ex.PC for registration of FIR, I got recorded that we were sitting at gate. Bilal accused was on duty at gate. Security guard room measuring 8 x 8 feet. The inter-se distance between us in the security guard room

was about one feet. Door of security guard room was opened on north side.”

Muhammad Arshid (PW-7) deposed during cross-examination that:-

“We reached at the place of occurrence from left side of the gate of Ali Garden. ----- Allah Yar was present inside a small room and we were standing outside said room. We remained sitting with Allah Yar, thereafter we were standing outside the said small room.”

Whereas Riasat Ali (PW-8) deposed during his examination-in-chief that:-

“After that we were sitting at the gate of Ali Garden, Bilal Ahmed accused is also on his duty at the said gate while armed with rifle 8MM.”

However, a perusal of the site plan (Ex.PA) reveals that at point No.1, the deceased, Allah Yar, sustained injuries inside the guard room; point No.2 is outside the guard room, from which it was alleged that Bilal Ahmad (the appellant) inflicted firearm injuries; and at point No.6, the complainant and prosecution witnesses observed the incident. The accused was located between point No. 1 and point No. 6, which also casts doubt on the presence of the prosecution witnesses at the time of the incident. It is relevant to note that, according to the prosecution witnesses, they reconciled the deceased and the accused and sat with their brother, Allah Yar (the deceased), at Ali Garden Gate, when Bilal Ahmed fired at Allah Yar (the deceased). Although the site plan is not a substantive piece of evidence according to Article 22 of the Qanun-e-Shahadat Order, 1984, as held in the case of **“Mst. Shamim Akhtar v. Fiaz Akhtar and two others”** (PLD 1992 SC 211), it reflects the view of the crime scene, and the same can be used to contradict or disbelieve eyewitnesses. This grave infirmity destroys the credibility of the witnesses' evidence. This casts serious doubt on the authenticity of the prosecution's story, including the presence of the complainant and the witnesses at the scene of the incident.

10. It is the case of the prosecution that Bilal Ahmad (the appellant) was performing his duty while armed with a rifle 8 MM, and he made eight straight fires with rifle 8 MM upon Allah Yar, the deceased, and while fleeing away from the place of occurrence, Bilal Ahmad (the appellant) took

away the licensed pistol of Allah Yar, the deceased. Waris Ali (PW-6)-the complainant deposed during his examination-in-chief that:-

“At about 4:00 AM Bilal Ahmed accused while armed with rifle 8MM raised Lalkara that he will teach lesson about his insult and in our presence, present accused Bilal Ahmed made straight eight fires with rifle 8MM upon my brother Allah Yar which hit upon the front chest, right shoulder and left arm.----- Accused Bilal Ahmed also took the licensee pistol of Allah Yar deceased and left his rifle 8MM at the place of occurrence.”

During cross-examination, Waris Ali (PW-6), the complainant, admitted that:-

“It is correct that it was not mentioned in Ex.PC that accused left his rifle 8 MM at the place of occurrence.”

Similarly, Muhammad Arshid (PW-7) deposed during his examination-in-chief. However, during cross-examination, he (PW-7) deposed as under:-

“I recorded in my statement u/s 161 Cr.P.C. that accused made eight fire shots. Confronted with Ex.DA where word “eight” is not mentioned. I recorded in my statement u/s 161 Cr.P.C that we tried to catch the accused Bilal but he ran way while brandishing his weapon. Confronted with Ex.DA where it is recorded that accused hold his gun towards us.”

Riasat Ali (PW-8) deposed during cross-examination that:-

“I recorded in my statement u/s 161 Cr.P.C. that accused Bilal was performing his duty while armed with rifle 8MM. Confronted with Ex.DB where specific word rifle 8MM is not mentioned. I also recorded in my statement u/s 161 Cr.P.C that accused made eight fire shots. Confronted with Ex.DB where word eight is not mentioned. I recorded in my statement u/s 161 Cr.P.C. that accused fled away while brandishing his weapon. Confronted with Ex.DB where word “رائفل تان لی” is mentioned. I recorded in my statement u/s 161 Cr.P.C. that accused Bilal after occurrence left his rifle 8MM at the place of occurrence. Confronted with Ex.DB where it is not so recorded.”

On perusal of the scaled site plan (Exh.PA), which was prepared on the pointing of complainant and prosecution witnesses, point No.2 is the point wherefrom accused Bilal Ahmad while armed with 8mm Rifle fired at Allah Yar (deceased) and at point No.1, it was mentioned that the appellant took away the licensed pistol No.300-C belonging to Allah Yar (deceased). However, it was not mentioned in the scaled site plan (Exh.PA) that the accused left his 8 mm rifle at the place of occurrence. Whereas Shahzad Ahmad S.I/S.H.O (PW-11)-the investigating officer deposed during his examination-in-chief that:-

“I also collected crime empties and rifle 8MM alongwith magazine from the place of occurrence.”

There are contradictions between statements of prosecution witnesses with regard to the fact that the appellant left his Rifle 8mm at the place of occurrence. Amanullah S.I/I.O (PW-10) deposed during his examination-in-chief that:-

“Amir Sher Security Incharge handed over to me two authority letters Ex.PK and Ex.PK/1 which I took into possession vide recovery memo Ex.PK/2.”

During cross-examination, Amanullah S.I/I.O (PW-10) admitted that:-

“It is correct that Amir Bashir Incharge, Security Guards, Ali Garden is not cited as PW in calendar of witnesses. Witness volunteered that statement of said PW is recorded u/s 161 Cr.P.C. by me. I did not collect the authority letters of other security guards deputed in Ali Garden during the course of investigation.”

The prosecution has failed to prove the authenticity of the aforementioned documents, i.e., Ex.PK and Ex.PK/1. There is a conflict among the statements of the prosecution witnesses regarding the time of their presence at the place of occurrence, the time the police arrived, and the time the matter was reported to the police. Even the weapon used in the crime appears doubtful. There are also contradictions among the statements of the prosecution witnesses regarding the shifting of the dead body to the

hospital. Waris Ali (PW-6), the complainant, deposed during cross-examination that:

“Three police officials reached at the place of occurrence. Dead body was shifted to Hospital from place of occurrence at 07:00 am on rescue 1122 Ambulance.”

While Muhammad Arshid (PW-7) deposed during cross-examination that police reached the place of occurrence after 15/25 minutes, and Waris Ali (PW-6), the complainant himself, moved the application (Exh.PC) for registration of case to the police at about 05:00 a.m., and at the same time, dead body was shifted to the hospital. The relevant portion of cross-examination is reproduced hereunder:-

“Police reached at the place of occurrence after 15/25 minutes. Waris Ali complainant himself moved the application Exh.PC for registration of case to police at about 5:00 AM. Dead body was also sent to hospital at the same time on official vehicle of police.”

(Bold and underline for emphasis)

There is a conflict between the statements of Waris Ali (PW-6), the complainant, and Muhammad Arshid (PW-7) about shifting the dead body to the hospital.

11. There is another aspect of the case which casts a cloud of doubt upon the prosecution's case. Dr. Javaid Iqbal (PW-5) deposed during his examination-in-chief that:-

“Date and time of death according to police paper was 13.01.2020 at 4:00AM, received dead body in dead house at 10:45 AM, received complete documents from police at 2:00 PM and autopsy was conducted on the same day at 2:15 PM.”

Dr. Javaid Iqbal (PW-5) also deposed during the examination-in-chief that he saw and signed the injury statement (Exh. PE) and the inquest report (Exh. PF). At that time, the FIR was not seen and signed by Dr. Javaid Iqbal (PW-5). Muhammad Arshid (PW-7) has stated that at the time when the matter was reported, the dead body was shifted to the

hospital, whereas Waris Ali (PW-6), the complainant, stated that the dead body was shifted to the hospital from the place of occurrence at 07:00 a.m. Asghar Ali 1683/C (PW-2), who escorted the dead body to Allied Hospital, Faisalabad, deposed during cross-examination that the distance between Ali Garden and the hospital is about 10/20 kilometers. Asghar Ali 1683/C (PW-2) deposed during cross-examination that:-

“The distance between Ali garden and hospital is about 10/15 kilometer. We shifted the dead body to the hospital on official vehicle. ----- I do not know about complainant and witnesses of the instant case. Some persons met me at Hospital and I.O told me that these are the complainant and other witnesses. I.O arrived at the hospital before the arrival of legal heirs of deceased. I.O reached at the hospital at about 01/01:30 pm.”

Dr. Javaid Iqbal (PW-5) also stated during his examination-in-chief that rigor mortis was not fully developed. The doctor also deposed that the probable time elapsed between death and postmortem was within 12 hours. If the matter was reported to the police at 05:15 a.m., an FIR was registered at 05:30 a.m., and, as per the statements of the prosecution witnesses, the dead body was sent to Allied Hospital for a postmortem examination, there is no reason to delay the postmortem examination. There is no plausible explanation for why the postmortem of the dead body was delayed for 08 hours and 45 minutes from the time of registration of the FIR, i.e., 05:30 am. No doubt, delay in postmortem alone is not fatal to the prosecution's case, but when this court considered it with the other evidence available on the record, along with the postmortem report (Ex.PF), it does influence the mind of the Court and leaves the impression that there had been some wrangling about the time of registration of the criminal case. All these circumstances, in my view, cast serious doubt on the testimonies of Waris Ali (PW-6), the complainant, Muhammad Arshid (PW-7), and Riasat Ali (PW-8). The prosecution has failed to bring home the charges framed against the appellant.

12. As far as recovery of the weapon of offence, i.e., pistol 30-bore alongwith five bullets on the pointing of Bilal Ahmad (the appellant), on 31.01.2020, and positive report of Punjab Forensic Science Agency (Ex. PO) are concerned, as per the prosecution case, the appellant, Bilal Ahmad, was arrested on 26.01.2020. Upon the disclosure of the appellant, Bilal Ahmad, on 31.01.2020, a pistol 30-bore alongwith five bullets was recovered from Ali Garden near the wall by Amanullah S.I (PW-10), the investigating officer, who secured it into possession through a recovery memo (Ex. PG) and handed it over to the moharrar for keeping it in safe custody in the malkhana. Contrary to the deposition of Amanullah S.I (PW-10)-the investigating officer, Waris Ali (PW-6)-the complainant deposed that:-

“Accused was arrested on 31.01.2020.”

As per the prosecution version, Bilal Ahmad (the appellant) fired with 8 MM rifle, and while leaving the place of occurrence, he took away the licensed 30-bore pistol of Allah Yar, the deceased. Whereas, the authority letters placed on the record, i.e., Ex.PK & Ex.PK/1 reveal that both weapons were issued in the name of Bilal Ahmad (the appellant). As per the prosecution case given in the complaint (Ex.PC) and FIR (Ex.PC/1), the accused fired at Allah Yar, the deceased, with 8 MM rifle, and the accused also took away a 30-bore pistol bearing No.300-C belonging to the deceased Allah Yar, with him, after the incident. However, Shahzad Ahmad S.I/S.H.O (PW-11) deposed during his examination-in-chief that he collected crime empties and rifle 8MM alongwith magazine from the place of occurrence on 13.01.2020. Admittedly, the appellant was arrested by Amanullah S.I (PW-10), the investigating officer, on 26.01.2020, and from his possession, a pistol 30-bore and five live bullets were recovered on 31.01.2020, which allegedly belonged to Allah Yar, the deceased. In addition, Shahzad Ahmad S.I/S.H.O (PW-11) deposed during cross-examination that:-

“Crime scene Unit came at the place of occurrence and prepared sealed parcel of recovered weapon at the place of occurrence.”

Contrary to the deposition of Shahzad Ahmad S.I/S.H.O (PW-11), Muhammad Arshid (PW-7) deposed during examination-in-chief that:-

“I.O. also took into possession rifle 8MM with Magazine and five empties of rifle 8MM from the place of occurrence vide recovery memo Ex.PJ and also prepared sealed parcels. I.O. obtained my signature upon recovery memos.”

There are contradictions between the statements of prosecution witnesses with regard to the recovery of the 8MM rifle from the place of occurrence. In these circumstances, the recovery of the 8MM rifle and its safe custody becomes doubtful. So, the recovery and the positive report are of no consequence. As far as the motive is concerned, the trial court has already disbelieved the same.

13. As it is difficult to rely upon the testimonies of Waris Ali (PW-6)-the complainant, Muhammad Arshid (PW-7) and Riasat Ali (PW-8) and for other reasons enumerated hereinbefore, I am persuaded to hold that the prosecution had not been able to prove its case against the appellant beyond any shadow of doubt, as there were many dents in the prosecution's story. As such, the conviction and sentence recorded by the learned trial court cannot be sustained. Reliance has been placed on the case reported as **“Muhammad Akram v. The State”** (2009 SCMR 230) wherein the Hon’ble Supreme Court of Pakistan held that:-

“The nutshell of the whole discussion is that the prosecution case is not free from doubt. It is an axiomatic principle of law that in case of doubt, the benefit thereof must accrue in favour of the accused as matter of right and not of grace. It was observed by this Court in the case of Tariq Pervez v. The State 1995 SCMR 1345 that for giving the benefit of doubt, it was not necessary that there should be many circumstances creating doubts. If there is circumstance which created reasonable doubt in a prudent mind about the guilt of the accused, then the accused would be entitled to the benefit of doubt not as a matter of grace and concession but as a matter of right.”

14. I, therefore, **accept in toto Criminal Appeal No.25868-J of 2021** filed by appellant, Bilal Ahmad, son of Zahoor Ahmad, as a result whereof the conviction and sentence recorded by the learned trial court vide judgment dated 10.03.2021 are **set aside**. The appellant, Bilal Ahmad, son of Zahoor Ahmad, is ordered to be acquitted of the charge in case F.I.R. No. 95 of 2020, dated 13.01.2020, for offenses under Sections 302/404 PPC, registered at Police Station Madina Town, Faisalabad. The appellant, Bilal Ahmad, son of Zahoor Ahmad, is directed to be released forthwith, if not required in any other case.

15. So far as **Criminal Revision No. 25867 of 2021** filed by the complainant for enhancement of the sentence of the appellant/respondent No.1, Bilal Ahmad, son of Zahoor Ahmad, awarded by the trial court, is concerned, for the reasons aforesaid, the same is devoid of any legal force, which is accordingly **dismissed**.

(AALIA NEELUM)
CHIEF JUSTICE

These are the detailed reasons for the short order.

CHIEF JUSTICE

*This judgment was dictated,
pronounced on 12.05.2026,
and signed after completion
on 08.06.2026.*

Ikram*